

ing with the bankrupt's interest (a); [and a debtor's petition under The Bankruptcy Act, 1883, will it is conceived have the same effect.]

17. A person cannot settle *his own* property on *himself*, with a limitation over in the event of his own bankruptcy (b). But a husband may on his marriage thus settle a fund of his own to the extent of the wife's fortune received by him, for this, though apparently a settlement by him, is in substance a settlement of the money advanced by the wife (c); and, indeed, a person may on marriage, without regard to the wife's fortune, limit his own property to himself for life or until *alienation*, and then over in favour of the wife or children, for they are purchasers for value and there is no fraud upon any one (d).

18. **Direction to purchase presentation for a particular person.**—It is not unusual to find a clause in a *will* directory to trustees to purchase a *presentation* in favour of some particular object; but, it seems, if the purchase be made with the *intention* of presenting the *cestui que trust*, though the patron himself was ignorant of the purpose in view (e), it falls within the enactment against simony (f). A patron is forbidden to present for money, either *directly* or *indirectly*; and, the object being determined upon at the time of the purchase, the construction put upon the transaction by the Court is, that the patron presents *indirectly* by selling to a person who purchases with the sole intention of presenting.

(a) *Re Amherst's Trusts*, 13 L. R. Eq. 464.

(b) *Higinbotham v. Holme*, 19 Ves. 88; *Ex parte Hill*, 1 Cooke's Bank. Law, 291; *Ex parte Bennet*, ib. 293; *In re Murphy*, 1 Sch. & Lef. 44; *In re Meagham*, ib. 179; *Ex parte Hodgson*, 19 Ves. 206; *Re Casey's Trust*, 3 Ir. Ch. Rep. 419, 4 Ir. Ch. Rep. 247; *Clarke v. Chambers*, 8 Ir. Ch. Rep. 26; *Murphy v. Abraham*, 15 Ir. Ch. Rep. 371.

(c) *Ex parte Cooke*, 8 Ves. 353; *Higginson v. Kelly*, 1 B. & B. 252; *Ex parte Verner*, ib. 260; *In re Meagham*, 1 Sch. and Lef. 179; *Ex parte Hodgson*, 19 Ves. 206; [*Corr v. Corr*,

3 L. R. Ir. 435, 438; *Re Callan's Estate*, 7 L. R. Ir. 102.] but see *Ex parte Hill*, 1 Cooke's Bank. Law, 291, and compare *Ex parte Hodgson*, 19 Ves. 208.

(d) *Knight v. Browne*, 7 Jur. N. S. 894; *Brooke v. Pearson*, 27 Beav. 181; and see *Phipps v. Lord Ennismore*, 4 Russ. 131; *Synge v. Synge*, 4 Ir. Ch. Rep. 337; [*Re Callan's Estate*, 7 L. R. Ir. 102.]

(e) *King v. Trussell*, 1 Sid. 329.

(f) *Kitchen v. Calvert, Lane*, 102, per Baron Snig; *Winchcombe v. Pulleston, Noy*, 26, per Lord Hobart; *Godbolt*, 390; and see *Fearne's P. W.* 404; but see *Fox v. Bishop of Ches-*